

Mohd. Usman v. Dakkshinachal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 18 September 2018 · Writ-C No. 31060 of 2018 · **Writ dismissed; theft disconnection under clause 8.1(viii) upheld.**

HEADNOTE

On an alleged theft inspection, with an FIR under section 135 of the Electricity Act, 2003, clause 8.1(viii) of the Electricity Supply Code, 2005 authorised the licensee to disconnect supply forthwith on the spot. A later disconnection, after a crowd had prevented on-spot disconnection, was held prima facie justified. The writ seeking restoration and quashing of the disconnection and provisional assessment was dismissed; grievances against the assessment were left to the assessing authority for a speaking order.

FACTUAL SUMMARY

On inspection the petitioner's flour mill at Mathura was allegedly found committing theft of electricity. An FIR dated 14 August 2018 was lodged under section 135 of the Electricity Act, 2003. A crowd prevented on-the-spot disconnection; supply was cut on 28 August 2018 and a provisional assessment dated 16 August 2018 issued. The petitioner sought quashing of both orders and restoration, alleging disconnection without hearing. The licensee stated that he had been noticed to appear before the assessing authority on 28 September 2018.

REUSABLE CONSTRUCTIONS

1. Clause 8.1(viii) of the Electricity Supply Code, 2005 empowers the licensee to disconnect electricity supply forthwith on the spot where the consumer is found committing theft of electricity. ¶ 1
2. Where a crowd prevents on-spot disconnection at the time of a theft inspection, a later disconnection of the same supply remains prima facie justified under clause 8.1(viii); a writ will not restore supply or quash the disconnection on the ground that no pre-disconnection hearing was given. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

theft-disconnection

HOLDING

Clause 8.1(viii) of the Electricity Supply Code, 2005 empowers the licensee to disconnect supply forthwith on the spot where the consumer is found committing theft of electricity. After an inspection allegedly disclosing theft and an FIR under section 135 of the Electricity Act, 2003, disconnection on 28 August 2018 was prima facie justified even though a crowd had prevented immediate disconnection. The writ to quash that disconnection and the provisional assessment and to restore supply was dismissed; the consumer was left to raise all grievances before the assessing authority, which was to pass a speaking order. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy On an alleged theft inspection, with an FIR under section 135 of the Electricity Act, 2003, clause 8.1(viii) of the Electricity Supply Code, 2005 authorised the licensee to disconnect supply forthwith on the spot. A later disconnection, after a crowd had prevented on-spot disconnection, was held prima facie justified.. ¶ 1

opportunity-before-final-assessment On an alleged theft inspection, with an FIR under section 135 of the Electricity Act, 2003, clause 8.1(viii) of the Electricity Supply Code, 2005 authorised the licensee to disconnect supply forthwith on the spot. A later disconnection, after a crowd had prevented on-spot disconnection, was held prima facie justified.. ¶ 1

NOT DECIDED — WHETHER THE PETITIONER IN FACT COMMITTED THEFT OF ELECTRICITY

The Court proceeded on the alleged inspection finding and a prima facie justification for disconnection; it did not try the theft charge. ¶ 1

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT DATED 16 AUGUST 2018

Left to the assessing authority, which was to hear the petitioner on 28 September 2018 and pass a speaking order. ¶ 1

SCJ-1837 · Mohd. Usman v. Dakkshinachal Vidyut Vitran Nigam Ltd. · · Supply Code Jurisprudence

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